



AN ACT GENERALLY REVISING CAMPAIGN FINANCE LAWS; PROVIDING LIMITATIONS THAT ONLY A LIMITED LIABILITY COMPANY ~~AND PARTNERSHIP~~ THAT IS TAXED AS A SOLE PROPRIETORSHIP OR A PARTNERSHIP, OR A PARTNERSHIP TAXED AS A PARTNERSHIP, MAY MAKE CONTRIBUTIONS TO A CANDIDATE AND THAT THE CONTRIBUTIONS MUST BE REPORTED UNDER THE NAME OF THE MEMBER OR PARTNER MAKING THE CONTRIBUTION; AND ~~PROHIBITING AN INDIVIDUAL CONTRIBUTION SEPARATE FROM THE CONTRIBUTION MADE BY THE MEMBER OR PARTNER OF THE LIMITED LIABILITY COMPANY OR PARTNERSHIP~~ CLARIFYING CONTRIBUTION LIMITS."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Limitations on limited liability company and partnership contributions to candidates

-- **reporting requirements.** (1) A candidate may only accept a contribution from a limited liability company or partnership if the limited liability company or ~~partnership~~ is classified and taxed as a sole proprietorship or a partnership, or the partnership is taxed as a partnership, for federal tax purposes. A candidate may not accept a contribution from a limited liability company or partnership that is taxed as a C. corporation or an S. corporation for federal tax purposes.

(2) A contribution from a limited liability company ~~or partnership~~ taxed as a sole proprietorship or partnership, or a partnership taxed as a partnership, for federal tax purposes must be reported under the name of the member or partner making the contribution subject to the disclosure requirements under 13-37-229.

(3) The member or partner reported as making a contribution to a candidate ~~as a limited liability company or partnership may not make a separate contribution as an individual and is subject to the individual~~ contribution limitations under 13-37-219_13-37-216.

Section 2. Codification instruction. [Section 1] is intended to be codified as a new part of Title 13,

chapter 37, and the provisions of Title 13, chapter 37, apply to [section 1].

- END -

I hereby certify that the within bill,
HB 759, originated in the House.

Chief Clerk of the House

Speaker of the House

Signed this _____ day
of _____, 2025.

President of the Senate

Signed this _____ day
of _____, 2025.

HOUSE BILL NO. 759

INTRODUCED BY R. GREGG, S. FITZPATRICK

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